

Stereo H.C.J.D.A.38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

ICA No. 125383 of 2017

Shafique Ahmad Khan & 3 others
vs
Director General, Lahore Development Authority & 3 others

JUDGMENT

Date of hearing 16.01.2019

Appellants by	M/s. Aamir Iqbal Basharat, Umair Yasin, Mian Nasir Shahda and Muhammad Anwer Khan Baloch, Advocates
Respondent/ LDA by	Mr. Salman Mansoor, Advocate

MUZAMIL AKHTAR SHABIR, J:- Through this Intra Court Appeal, the appellants have called in question order dated 30.11.2017 passed by learned Single Judge in Chambers, whereby the constitutional petition, filed by the appellants, has been dismissed.

2. The brief facts of the case are that the land belonging to the appellants situated in Mouza Chung Punj Garien was acquired by Lahore Development Authority ("**LDA**") for the purpose of Mohlanwal Housing Scheme ("**Scheme**") through an award of the Collector Acquisition, LDA, Lahore dated 15.06.1985 and in lieu of the said land, the Director Land Development, LDA and Allocation Committee allocated plots in Block-C, E and F of the said scheme to appellants. The appellants claim that Block-D of the Scheme has been developed over land acquired from Mouza Chung Punj Garien, therefore, as per the exemption policy they were entitled to be allocated exempt plots in Block-D instead of Block-E and F constructed over land acquired from Villages Mohlanwal and Jalyana. Through order dated

30.05.2016 passed in WP No. 17354 of 2016, this Court referred the afore referred grievance of the appellants for decision to the DG, LDA who vide order dated 26.01.2017 declined their claim. Feeling aggrieved of the said order, the appellants filed WP No. 20100 of 2017 which was dismissed vide order dated 30.11.2017. The said order is under challenge by filing instant appeal.

3. It has been argued by learned counsel for the appellants that the learned Single Judge has not properly appreciated Clause 13 of the exemption policy while declining to set-aside the order dated 26.01.2017 passed by DG, LDA whereby he has refused the request of the appellants to allocate plots in Block-D instead of Block-E and F.

4. On the contrary, learned counsel for respondent LDA has defended the impugned order by contending that the appellants after receiving possession letters in the year 2006, remained silent for 10 years before challenging the same for the first time in the year 2016 by filing a constitutional petition before this Court and the said petition alongwith subsequent petition filed in the year 2017 are barred by *laches*.

5. The controversy revolves around Clause 13 of the Exemption Policy which for ready reference is reproduced below:

"Every effort will be made to allocate a plot or plots to the exemptee on or around the piece of land he owned prior to acquisition of his land."

As regard the argument advanced by learned counsel for the appellants that Clause 13 of the Exemption Policy has been violated, suffice it to say that the phrases "*effort will be made to allocate plot or plots*" and "*on or around the piece of land he owned*" used in the said Clause although require to provide plot or plots on or around the land previously owned by the owners, the said provision is directory and not mandatory in nature as no consequence has been given for non-compliance of the same, so in some situations the appellants may be provided plots at other places.

6. The appellants have contended that the Scheme has been developed over land belonging to three different villages i.e. Mohlanwal, Chung Punj Garien and Jalyana and they are entitled to allocation of plots in Block-D as their acquired land was situated in Chung Punj Garien now forming part of the said block. In order to strengthen their case the appellants have relied upon judgment reported as Lahore Development Authority through Director General, Lahore and others vs. Sahibha Khanam (2016 SCMR 2143), to claim that in a similar situation the same relief has been granted to the respondent in that matter ("Sahibha Khanam"). Perusal of the aforesaid judgment shows that facts of the said case are different from the present case as Sahibha Khanam did not concede to the conditions mentioned in the allotment letter nor gave any consent for exemption of plots and the formalities of the allotment were not agreed to by her. In the case in hand, the appellants gave consent to Clause 9 of the allocation letter, thereafter deposited the amount of final demand notice and received possession of the land by which it can be inferred that the appellants acceded to the allotment of aforementioned plots to them. Moreover possession was granted in the year 2006 and the appellants after lapse of a considerable period of time have now challenged the same and that too after passing of the afore referred judgment dated 16.03.2016 by the Hon'ble Supreme Court of Pakistan. Although the appellants claim that they had been pursuing the matter by filing applications before the LDA, neither any document has been produced nor any serious effort is shown to have been previously made by them to seek the said relief by approaching any competent forum as had been done by Sahibha Khanam. Moreover, the judgment (supra) relied upon by the appellants is a judgment in *personam* and not in *rem*. Resultantly the appellants having accepted the terms and conditions of the allocation letter, acted upon the same by depositing entire amount to receive possession of allocated plots and thereafter waited for 10 years before agitating their grievance are estopped from raising any objection at this belated stage, which makes the constitutional petition barred by *laches*. Consequently, the

learned Single Judge in Chambers was justified in dismissing the constitutional petition filed by the appellants.

7. For what has been discussed above, this appeal being devoid of any force is *dismissed*.

(SHAHID JAMIL KHAN)
JUDGE

(MUZAMIL AKHTAR SHABIR)
JUDGE

Naveed*